Ashish Shishir Chandra vs The State Of Delhi Through S.H.O on 18 July, 2024

Author: Manoj Kumar Ohri

Bench: Manoj Kumar Ohri

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* IN THE HIGH COURT OF DELHI AT NEW
+ BAIL APPLN. 2431/2024
ASHISH SHISHIR CHANDRA

THE STATE OF DELHI THROUGH S.H.O.
Through: Mr. Aashnee

CORAM:
HON'BLE MR. JUSTICE MANOJ KUMAR OH

% 18.07.2024

1. The present application has been filed by the petitioner/applicant seeking anticipatory bail in FIR No. 17/2024 registered under Sections 419/420/384/170/120B IPC at P.S. Cyber Police Station, Delhi.

2. Learned counsel for the applicant submits that the applicant has been falsely implicated in the present matter and is merely an employee in the office of the co-accused. It is submitted that the phone numbers which have been used to defraud the complainant in the present matter neither belong to the present applicant nor to anyone in his proximity. Learned counsel lastly submits that the present applicant is not a beneficiary from the alleged fraud since there has been no transfer of money in his personal account or in any account linked to his business.

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3. Learned APP for State has relied upon the Status Report which has come on record. It is submitted that the present matter involves fraud of an amount of Rs 62 lacs which has been illegitimately extracted from the complainant by persons impersonating as police officials. The present applicant came to be arrested based on the disclosure statements of the co- accused persons

namely, Anurag and Mukesh who have stated that they were working for the present applicant, who was in fact running a syndicate of fake accounts along with one Mohit Jain and Keshav. It is submitted that during investigation, it has come on record that accused Deepak Goyal on the directions of the present applicant, has opened 25 directorship firms running 63 current bank accounts against which 137 cases have been registered in different states, involving fraud of about 22 crores. Learned APP has referred to the statement of the landlord of the said office of the applicant at VDS-79/G-4, Sector 63, Noida, UP and has stated that the rent agreement of the said premises was executed in favour of the present applicant, who was jointly operating the office with co-accused Mohit and Keshav. Learned APP has also relied upon CDR connectivity between the applicant and the accused persons. It is further informed that since the grant of interim protection, the present applicant is not cooperating in investigation as he has deleted relevant chats and tampered with evidence before handing over his mobile phone to the authorities.

4. Considering the role attributed to the present applicant and after perusing the various relied upon documents which have come on record, this Court is of the opinion that the custodial interrogation of the applicant is necessary to reach the truth of the matter and that grant of anticipatory bail to the present applicant would be detrimental to the case.

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5. Accordingly, the bail application of the applicant is dismissed and disposed of.

MANOJ KUMAR OHRI, J JULY 18, 2024 na This is a digitally signed order.

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